Powergrid Corporation Of India Ltd vs Central Electricity Regulatory ... on 16 January, 2013

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No.78 of 2012

Dated : 16th January, 2013

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Powergrid Corporation of India Ltd. ... Appellant(s)

Versus

Central Electricity Regulatory Commission
& Ors. ....Respondent(s)

Counsel for the Appellant(s): Mr. S.B. Upadhyay, Sr. Adv

Counsel for the Respondent (s): Mr. M.G. Ramachandran,
Mr. Anand K. Ganesan for NTPC & GUVNL
Mr. Ankit Sibbal for R.4
Ms. Suparna Srivastava for R.8

ORDER

We have heard the learned counsel for the parties. On a perusal of the records, it is noticed that the Appellant cannot claim to be an aggrieved party to the impugned Order. Further, the relief granted in the impugned Order does not survive as the period of three months referred to in the impugned Order is already over.

In view of the above, the Appeal is disposed of. However, the question arises in this matter is left open to the Appellant to raise at the appropriate forum.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

ts/vs